

Jai Vaishno Rice Mill v. Ram Sanehi Yadav

High Court of Judicature at Allahabad, Lucknow Bench · Lucknow · 1 August 2022 · Contempt Application (Civil) No. 603 of 2018 · **Contempt dismissed; notices discharged on compliance.**

HEADNOTE

Civil contempt of a writ order directing a representation under Section 615 of the Electricity Supply Code, 2005 (on deposit of Rs 1,50,000) and restoration of supply was dismissed, the Court being satisfied from the licensee's compliance affidavit that the complaint had been decided on 11 March 2018.

FACTUAL SUMMARY

The proprietor of Jai Vaishno Rice Mill alleged civil contempt of a Division Bench order dated 23 November 2017 in W.P. No. 28258 (MB) of 2017. The writ court had directed the mill to make a representation under Section 615 of the Electricity Supply Code, 2005, to be considered and decided on deposit of Rs 1,50,000, with electricity restored. The respondents filed a 27 July 2018 compliance affidavit stating that the complaint had been decided on 11 March 2018 and communicated to the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::615

contempt-compliance

HOLDING

Where a writ court had directed the consumer to make a representation under Section 615 of the Electricity Supply Code, 2005, to be considered and decided on deposit of Rs 1,50,000 with restoration of supply, and the licensee showed that the complaint had been considered and decided, the civil contempt petition alleging non-compliance is dismissed and notices stand discharged. ¶ 1

FLAG ambiguous_clause